TENTH PARLIAMENT - THIRD SESSION

JOINT PORTFOLIO COMMITTEE ON PUBLIC SERVICE, LABOUR AND SOCIAL WELFARE AND THE THEMATIC COMMITTEE ON HUMAN RIGHTS

REPORT ON

THE PETITION BY THE POWER OF TOUCH INSTITUTION ON THE REVIEW OF LAWS AND REGULATIONS THAT HAVE A BEARING ON SENIOR CITIZENS

S.C. 18, 2026

Presented to Parliament in May 2026

1.0 Introduction

1.1 According to section 149 of the Constitution of Zimbabwe, read together with Appendix E, of the Standing Orders of the National Assembly on petitions, every citizen and permanent resident of Zimbabwe has a right to petition Parliament to consider any matter within its authority, including the enactment, amendment or repeal of legislation.

1.2 On 15 August 2025, Parliament received a petition from the Power of Touch Institution, represented by Mr. Francis Dembetembe and Ms. Beatrice Sithole, requesting Parliament to review laws and regulations that have a bearing on senior citizens, pensioners and retired professionals. The petition was examined for compliance and found to be admissible, and was subsequently referred to the Portfolio Committee on Public Service, Labour and Social Welfare. Given that the matters raised directly implicated the rights, dignity and welfare of older persons, the Committee considered the petition jointly with the Thematic Committee on Human Rights.

1.3 The petition raised issues of law, policy, administration and public service delivery affecting older persons in Zimbabwe. In particular, it pointed to the fragmentation of the legal framework governing older persons, the inadequacy of social protection programmes, the absence of dedicated institutional arrangements for implementation and monitoring of the same, and the limited recognition of the social and economic contribution of senior citizens and retired professionals.

2.0 Petitioners' Prayer

2.1 The petitioners beseeched Parliament to take legislative and oversight measures to improve the conditions of senior citizens, pensioners and retired professionals in Zimbabwe. Their principal prayer was that Parliament should cause an urgent review of all laws and regulations bearing on older persons and facilitate the enactment of a new and comprehensive Senior Citizens, Pensioners and Retired Professionals Act.

2.2 Specifically, the petitioners requested Parliament to consider the following measures:

Commission an urgent review of all laws, regulations and socio-economic conditions affecting senior citizens, pensioners and retired professionals, with a view to adopting a multi-stakeholder approach to reform.

Cause the enactment of a new and comprehensive Senior Citizens, Pensioners and Retired Professionals Act that consolidates and harmonises the rights, protections and benefits of older persons. In specific terms the laws should provide for the following:

- Define an "older person" or "senior citizen" to include every Zimbabwean aged fifty-five years and above.
- Establish a department in the relevant Ministry headed by a Director to ensure the implementation and monitoring of the proposed legal framework, supported by adequate budgetary and human resources.
- Decentralise this office to all provinces and ensure that major public service points such as hospitals, clinics, banks, ports of entry, supermarkets, hotels, polling stations and educational institutions have properly manned older persons' contact desks.
- Require publication of comprehensive quarterly reports on the economic, social and political status of senior citizens, pensioners and retired professionals.
- Ensure that public broadcasters and taxpayer-funded media adequately cover issues affecting senior citizens, pensioners and retired professionals.
- Introduce unconditional and predetermined social welfare grants, adjusted for inflation and reflective of the cost of living, and ensure that pensions and related benefits are indexed to the Consumer Price Index.
- Guarantee free access by senior citizens to public and private medical institutions of their choice and ensure the maintenance of functional geriatric wards.
- Enhance budgetary allocations to the Older Persons Fund and relax capital expenditure limitations in order to mitigate the hardships faced by older persons.
- Waive selected statutory and public service fees for senior citizens, including municipal rates, parking, birth and death certificate fees, conveyancing, capital gains and passport application fees.
- Establish inspection mechanisms for public and private old people's homes and provide relief to older persons supporting unemployed, orphaned or single-parent dependants.

3.0 Methodology

3.1 In conducting its inquiry, the Joint Committee considered the petition as lodged by the Power of Touch Institution, including its admissibility record and annexures. The

Committee also heard oral evidence on 23 February 2026 from the petitioners and from the Ministry of Public Service, Labour and Social Welfare.

3.2 The oral evidence session enabled the Committees to appreciate, on the one hand, the lived experiences and proposals advanced by the petitioners and, on the other hand, the policy, legal and administrative measures already in place or under development within Government. The Committees further utilised the petition itself, the oral submissions and the applicable constitutional and statutory framework in arriving at their findings.

4.0 Committee's Findings

4.1 Nature of the grievances raised by the petitioners

The petitioners submitted that there is widespread hardship among older persons in Zimbabwe, manifesting in poverty, inadequate income security, constrained access to health services, loss of dignity at public service points and weak institutional protection. The petitioners argued that although various statutes and policies touch on older persons, the current framework is fragmented and insufficiently coordinated. In their view, this fragmentation makes implementation difficult and weakens accountability.

The petitioners further emphasised that older persons were not a homogenous category. Some were pensioners, retired professionals and others were simply senior citizens who may have spent most of their lives in informal, peasant or communal livelihoods and therefore do not benefit from formal pension schemes. The Committees found this distinction useful because it illustrates the breadth of the social protection challenge and the need for responses that go beyond formal pensions only.

4.2 Need for a more coherent legal framework

A central theme of the petition was the call for one comprehensive law dealing with senior citizens, pensioners and retired professionals. The petitioners argued that existing laws use different terms such as "older persons", "elderly" and "pensioners", and that the lack of legal and administrative coherence creates ambiguity regarding coverage, implementation and monitoring.

Mr. T. Zimunga, the Social Protection Acting Chief Director from the Ministry of Public Service, Labour and Social Welfare advised the Joint Committee that the Constitution already contains provisions on the rights of the elderly, and that the Older Persons Act [Chapter 17:11], the Social Welfare Assistance Act [Chapter 17:06], the National Social

Protection Policy Framework and the National Development Strategy 2 all provide a basis for interventions concerning older persons. The Ministry further submitted that it was already in the process of reviewing the Older Persons Act, reviewing the Social Welfare Assistance Act into a broader Social Protection Act, and formulating an Older Persons Policy.

While noting those ongoing processes, the Joint Committee found merit in the petitioners' concern that the current framework remains dispersed across different statutes and policies.

4.3 Definition of "older person" and age thresholds

The petitioners proposed that an older person or senior citizen be defined as any Zimbabwean aged fifty-five years and above. Their argument was informed by the socio-economic realities of ageing in Zimbabwe, including diminished earning capacity, dependency burdens, poor access to health services and the vulnerability of many persons approaching or entering retirement.

Mr. T. Zimunga, however, advised that the Constitution refers to persons over the age of seventy years in relation to specified rights, while the Older Persons Act currently identifies an older person as one aged sixty-five years and above. The Ministry also indicated that the retirement age in the Public Service has been reviewed upwards, and that changing the age threshold across the board may require wider legal reform and constitutional alignment.

The Committees found that the age issue remains contested and requires careful policy and legal consideration. However, the evidence received clearly pointed to the need for a more explicit and operationally useful definition, including differentiation between senior citizens generally, pensioners and retired professionals where appropriate.

4.4 Institutional arrangements for implementation

The petitioners proposed the creation of a dedicated department, headed by a Director, to oversee the welfare and development of senior citizens, pensioners and retired professionals. They argued that without a clearly identifiable institutional focal point, older persons' issues are treated as peripheral matters and are often addressed only in theory rather than in practice.

In response, Mr. T. Zimunga stated that responsibility for older persons currently lies within the Department of Social Development and that there is an Older Persons Board provided for under the law. The Ministry also indicated that older persons' programmes are decentralised across provinces and administrative districts, and that there is a section dealing specifically with older persons under the Department of Social Development.

Notwithstanding those arrangements, the Ministry acknowledged resource constraints and indicated that Government has not yet appointed a substantive Director solely responsible for older persons. The Joint Committees found that this admission was significant. It demonstrates that, although there is some institutional architecture in place, the petitioners' concern about visibility, coordination and implementation capacity was not without foundation.

4.5 Social protection and income security

A major grievance raised by the petitioners related to the precarious financial position of older persons. The petitioners called for unconditional and inflation-adjusted social welfare grants, as well as improved pension and benefit indexation. They submitted that many older persons, including those who were once professionals or public servants, now live in destitution and were unable to meet basic needs.

Mr Zimunga informed the Joint Committees that the Older Persons Fund was operational and that older persons may benefit from several social protection interventions, including per capita grants for those under institutional care, food deficit mitigation, cash transfers, health assistance and support through the Basic Education Assistance Module for dependants. The Ministry also advised that Government was considering a universal grant scheme subject to fiscal space and the strengthening of the social registry.

The Committees found that while social protection measures do exist, they were neither universal nor yet sufficient to meet the scale of vulnerability described by the petitioners. The Committees also observed that inflation, currency instability and the cost of health care continued to erode whatever limited assistance is available to many older persons.

4.6 Access to health care

The petitioners submitted that many senior citizens fail to access free or affordable health care in practice, notwithstanding policy statements or statutory guarantees. They raised concern over hospital charges, the cost of medication and the absence of adequately functioning geriatric services. The evidence highlighted the emotional and financial distress borne by families caring for elderly relatives.

Mr. T. Zimunga advised that persons above sixty-five years may access free treatment through the Assisted Medical Treatment Order issued in districts. It also indicated that Government, through the Ministry of Health and Child Care, was working towards a National Health Insurance Scheme that may broaden access to treatment for older persons.

The Joint Committees found a clear gap between legal entitlement or policy aspiration and the lived reality recounted by petitioners. Even where a scheme exists, inadequate awareness, limited fiscal support, administrative bottlenecks and pressures within public health institutions can undermine effective access.

4.7 Public service delivery, dignity and prioritisation

The petitioners repeatedly underscored the issue of dignity. The petitioners argued that older persons often experience disrespect, poor handling and a lack of priority treatment at public points such as hospitals, banks, supermarkets and other service centres. They proposed older persons' contact desks and more deliberate accommodation of older persons across the public service delivery chain.

Mr. T. Zimunga submitted that there was already a standing expectation among service providers that older persons should not queue, and that Government is engaging local authorities on discounts and exemptions on selected local authority services for older persons. However, the petitioners' oral evidence suggested that the practical observance of such arrangements remains uneven.

The Committees found that the issue was not merely one of formal rules, but of enforceability, awareness, training and service culture. There is need for public institutions and private service providers alike to adopt more visible and standardised arrangements that preserve the dignity of older persons and improve access to services.

4.8 Older persons as caregivers and bearers of dependency burdens

The petitioners drew attention of the Committees to the reality that many older persons were not only vulnerable in their own right, but also carry the burden of supporting unemployed children, grandchildren, orphans and single-parent dependants. In both urban and rural communities, older persons are often the final safety net for struggling households.

The Ministry acknowledged this challenge and noted that migration, unemployment and other social pressures have left many older persons caring for dependants with inadequate resources. The Joint Committee found that this inter-generational dependency deepens the vulnerability of older persons and should be expressly reflected in social protection design, targeting and budgeting.

4.9 Recognition of retired professionals and social value of older persons

The petitioners also approached the matter from the perspective of national development, arguing that retired professionals and older persons represent a reservoir of experience, wisdom and institutional memory that should not be ignored. They proposed greater recognition and deliberate inclusion of senior citizens in advisory, governance and community structures.

4.10 Standards in old people's homes and public accountability

The petitioners requested stronger inspection and oversight of public and private old people's homes to ensure world-class standards of care. In response, the Ministry advised that residential care facilities are presently largely privately owned and that standards for such facilities are being developed.

5.0 Committee's Observations

5.1 The Joint Committee observed that the petition by the Power of Touch Institution was properly conceived and raised matters of genuine public importance. The evidence led before the Joint Committee showed that older persons face a multidimensional challenge encompassing legal uncertainty, weak institutional coordination, inadequate income security, constrained health access, and dignity deficits at service delivery points.

5.2 The Committees further observed that Government had already initiated important policy and legislative review processes, particularly in relation to the Older Persons Act,

the Social Welfare Assistance Act and an Older Persons Policy. These are commendable steps.

5.3 The Joint Committee noted that older persons were not a uniform category. Some are pensioners, some are retired professionals and some are elderly citizens outside the formal pension economy. Any future legal and policy response must therefore be broad enough to cover these categories, while still permitting targeted interventions where necessary.

5.4 The Committees also observed that the welfare of older persons should be approached both as a rights issue and as a matter of national social policy. Zimbabwe owes older persons not only care and protection, but also dignity, recognition and inclusion.

6.0 Committee's Recommendations

6.1 The Ministry of Public Service, Labour and Social Welfare should expedite the review of the Older Persons Act and related social protection legislation so as to produce a coherent and enforceable framework for the protection of senior citizens, pensioners and retired professionals by December 2026. Going forward, Government should consider the feasibility of a consolidated legal framework relating to older persons.

6.2 The Ministry of Public Service, Labour and Social Welfare should strengthen the institutional focal point for older persons by formalising a unit or directorate with adequate staffing and coordination functions at national and sub-national levels by January 2027.

6.3 Treasury should progressively increase budgetary support to the Older Persons Fund, the Assisted Medical Treatment Order and other social protection interventions targeted at older persons, with a view to improving access to service and reducing vulnerability in the 2027 National Budget.

6.4 The Ministry of Public Service, Labour and Social Welfare, together with local authorities and relevant regulators, should develop standard service delivery guidelines on the treatment and prioritisation of older persons at public service points, including hospitals, banks, transport hubs and local authority offices by 31 December 2026.

6.5 The Ministry of Public Service, Labour and Social Welfare should progressively adjust pensions and social grants, aligned to the Consumer Price Index and cost-of-living benchmarks starting budgeting in the 2027 financial year.

6.7 Treasury should comply with AMTOs extended to older persons while expediting the National Health Insurance Scheme by providing adequate resources in the 2027 financial year.

7.0 Conclusion

7.1 The Committee concludes that the plight of Senior Citizens, Pensioners and Retired Professionals in Zimbabwe is structural, systemic and urgent. Existing laws and policies, while well-intentioned, remain fragmented, weakly enforced and insufficient to guarantee dignity, security and social inclusion owing to lack of financial resources.

7.2 The Committee, therefore, strongly recommends the enactment of a comprehensive, consolidated Senior Citizens, Pensioners and Retired Professionals Act, supported by a powerful coordinating institution, as the most viable and sustainable solution to ensure that every Ministry, without exception, takes full account of the rights and needs of older persons.